

IN THE COURT OF COMMON PLEAS

DIVISION

COUNTY, OHIO

Name

Street Address

City

State

Zip Code

Case No.

Judge

Magistrate

Plaintiff

vs.

Name

Street Address

City

State

Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used in response to a filing of a Complaint for Divorce with Children, and allows you to agree with or dispute the statements made in the Complaint for Divorce with Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

ANSWER TO COMPLAINT FOR DIVORCE WITH CHILDREN

In Answer to Plaintiff's Complaint for Divorce, Defendant states as follows:

ADMIT DENY

☐☐

1. Plaintiff has been a resident of the State of Ohio for at least six (6) months immediately before filing the Complaint.

☐☐

2. Plaintiff has been a resident of the County stated in the Complaint for at least ninety (90) days immediately before filing the Complaint; OR

☐☐

Defendant resides in the County where the Complaint was filed.

ADMIT DENY

- | | | |
|------------------------------|------------------------------|---|
| ☐ | ☐ | 3. The date of Plaintiff and Defendant's marriage stated in the Complaint. |
| ☐ | ☐ | The place of Plaintiff and Defendant's marriage stated in the Complaint. |
|
☐ |
☐ | 4. Neither party is pregnant. |
| ☐ | ☐ | A party is pregnant. |
|
☐ |
☐ | 5. The child(ren) stated in the Complaint was/were born of the relationship prior to the marriage. |
| ☐ | ☐ | The child(ren) stated in the Complaint was/were born from or adopted during this marriage. |
| ☐ | ☐ | The child(ren) stated in the Complaint was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves. |
| ☐ | ☐ | The child(ren) stated in the Complaint is/are subject to an existing order of parenting or support of another Court. |
| ☐ | ☐ | One party is not the parent of the child(ren) stated in the Complaint who was/were born during the marriage. |
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☐ |
☐ | 6. Plaintiff is an active-duty servicemember of the United States military. |
| ☐ | ☐ | Defendant is an active-duty servicemember of the United States military. |
| | | 7. Defendant further admits or denies the following grounds for divorce: |
| ☐ | ☐ | Plaintiff and Defendant are incompatible. |
| ☐ | ☐ | Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year. |
| ☐ | ☐ | Plaintiff or Defendant had a Husband or Wife living at the time of the marriage. |
| ☐ | ☐ | Defendant has been willfully absent for one (1) year. |
| ☐ | ☐ | Defendant is guilty of adultery. |
| ☐ | ☐ | Defendant is guilty of extreme cruelty. |
| ☐ | ☐ | Defendant is guilty of fraudulent contract. |
| ☐ | ☐ | Defendant is guilty of gross neglect of duty. |
| ☐ | ☐ | Defendant is guilty of habitual drunkenness. |
| ☐ | ☐ | Defendant is imprisoned in a state or federal correctional institution at the time of filing the Complaint. |
| ☐ | ☐ | Defendant procured a divorce outside this state by virtue of which Defendant has been released from the obligations of the marriage, while those obligations remain binding on Plaintiff. |
|
☐ |
☐ | 8. Plaintiff and Defendant are owners of real estate and/or personal property. |
| | | 9. Defendant denies any allegations not specifically admitted. |

Defendant requests: (*select one*)

- ☐ the Complaint for Divorce be dismissed OR
☐ a divorce be granted and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City State Zip

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(*Check the boxes that apply*)

Defendant delivered a copy of the Answer to Complaint for Divorce with Children.

On: (Date) _____, 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

At: (Print address or fax number) _____

- By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
- ☐ Regular U.S. Mail
- ☐ Fax
- ☐ Hand Delivery
- ☐ Other: _____

Signature